IN THE NATIONAL COMPANY LAW TRIBUNAL, NEW DELHI
COURT-V

Item No.-518

CP (CAA) No.-58/230/232/ND/2022 (2nd motion)

IN THE MATTER OF:

Primedatabase.com Pvt. Ltd. And Praxis Consulting and Information Services Pvt. Ltd. **....Applicant**

SECTION

U/s 230-232 **Order delivered on 15.03.2023**

CORAM:
SHRI P.S.N PRASAD,
HON'BLE MEMBER (JUDICIAL)

DR. BINOD KUMAR SINHA,
HON'BLE MEMBER (TECHNICAL)

PRESENT:

For the Applicant	: Mr. R. S. Bhatia, CS
For the Respondent	:
For the RD	: Ms. Shankari Mishra, Adv.
For the IT Deptt.	: Mr. Sunil Agarwal, Sr. St. Counsel, Mr. Shivansh B Pandeya, Jr. St. Counsel, Mr. Utkarsh Tiwari, Adv.
For the OL	: Ms. Hemlata Rawat, Adv.

ORDER

Heard the submissions made by Ld. Counsel for the Petitioners. Petitioner's counsel is directed to furnish a copy of the board resolution passed by the transferee company clearly denoting that the tax liabilities of transferor company no. 1 and 2 , if any, claimed by the Income Tax Department in due course of time, shall be borne by the transferee company, apart from the undertaking already furnished by them. Ld. Counsel for the OL and proxy counsels for the RD and Income Tax Department are also present. List the matter on **19.04.2023.**

S/d- **S/d-**
(DR. BINOD KUMAR SINHA) **(P.S.N PRASAD)**
MEMBER (T) **MEMBER (J)**

Amit Tiwari
15.03.2023